

No. _____

IN THE SUPREME COURT OF THE UNITED STATES

DEMOCRATIC NATIONAL COMMITTEE, ET AL.,

Applicants,

v.

THE WISCONSIN STATE LEGISLATURE, ET AL.,

Respondents.

EMERGENCY APPLICATION OF DEMOCRATIC NATIONAL
COMMITTEE AND DEMOCRATIC PARTY OF WISCONSIN
TO VACATE STAY

DIRECTED TO THE HONORABLE BRETT M. KAVANAUGH, ASSOCIATE
JUSTICE OF THE SUPREME COURT OF THE UNITED STATES AND
CIRCUIT JUSTICE FOR THE SEVENTH CIRCUIT

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PARTIES TO THE PROCEEDING AND RELATED PROCEEDINGS

The parties to the proceeding below are as follows:

Applicants Democratic National Committee and the Democratic Party of Wisconsin were plaintiffs in the district court and appellees in the court of appeals.

Defendants below, Marge Bostelmann, Julie M. Glancey, Ann S. Jacobs, Dean Knudson, Robert F. Spindell, Jr., Mark L. Thomsen, are the members of the Wisconsin Election Commission. None has appealed the district court's injunction.

Respondent Wisconsin Legislature was an intervenor-defendant in the district court and an appellant in the court of appeals.

Respondents Republican National Committee and the Republican Party of Wisconsin were intervenor defendants in the district court. They pursued their own appeal from the district court's injunction, but the court of appeals denied their motion to stay the injunction and dismissed their appeal, finding they were not entitled to appeal because the judgment did not aggrieve them.

The related proceedings are:

1. *Swenson, et al. v. Wisconsin State Legislature, et al.*, No. 20A64 (U.S.) – Application to vacate stay docketed October 13, 2020;
2. *Gear, et al. v. Wisconsin State Legislature, et al.*, No. 20A65 (U.S.) – Application to vacate stay docketed October 13, 2020;
3. *Democratic National Committee, et al. v. Bostelmann, et al.*, No. 20-2844 (7th Cir.) – Order entered October 13, 2020;
4. *Democratic National Committee, et al. v. Bostelmann, et al.*, Nos. 20-2835 and 20-2844 (7th Cir.) – Order entered October 8, 2020;

5. *Democratic National Committee, et al. v. Bostelmann, et al.*, No. 2020AP1634-CQ (Wis.) – Order entered October 6, 2020;
6. *Gear, et al. v. Dean Knudson, et al.*, No. 3:20-cv-278 (W.D. Wis.) – Order entered September 21, 2020;
7. *Edwards, et al. v. Vos, et al.*, No. 3:20-cv-340 (W.D. Wis.) – Order entered September 21, 2020; and
8. *Swenson, et al. v. Bostelmann, et al.*, No. 3:20-cv-459 (W.D. Wis.) – Order entered September 21, 2020.

STATEMENT PURSUANT TO SUPREME COURT RULE 29.6

Per Supreme Court Rule 29.6, Applicants Democratic National Committee and Democratic Party of Wisconsin have no parent companies or publicly held companies with a 10% or greater ownership interest in them.

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**TO THE HONORABLE BRETT M. KAVANAUGH, ASSOCIATE
JUSTICE OF THE SUPREME COURT OF THE UNITED STATES AND
CIRCUIT JUSTICE FOR THE SEVENTH CIRCUIT:**

Applicants Democratic National Committee (DNC) and Democratic Party of Wisconsin (DPW), plaintiffs-appellees below, respectfully apply under this Court's Rules 22 and 23 for an order vacating the stay issued October 8, 2020, by a panel of the United States Court of Appeals for the Seventh Circuit, a copy of which is attached as Appendix ("App.") 1-32. That order stayed a September 21, 2020 preliminary injunction opinion and order issued by the United States District Court for the Western District of Wisconsin, attached as App. 33-101.

INTRODUCTION

The last time this case was before this Court in April, just prior to Wisconsin's spring primary, the Court ordered that, "to be counted in this election a voter's absentee ballot must be either (i) **postmarked by election day, April 7, 2020, and received by April 13, 2020, at 4:00 p.m.**, or (ii) hand-delivered as provided under state law by April 7, 2020, at 8 p.m." *Republican National Committee v. Democratic National Committee*, 140 S. Ct. 1205, 1208 (2020) (emphasis added). As the Court noted, the Wisconsin Legislature and other applicants had decided *not* to challenge the six-day extension ordered by the district court and approved by the Seventh Circuit, but instead to ask for an election-day postmark requirement *as part of* that extension. *Id.* at 1206. But the underlying extension was nevertheless an

important part of this Court’s order in *RNC*. The Court relied on it in rejecting additional relief, emphasizing “that the deadline for receiving ballots was already extended to accommodate Wisconsin voters ... to ensure [they] can cast their ballots and have their votes count.” *Id.* The Court expressed no concerns about “afford[ing] Wisconsin voters several extra days in which to mail their absentee ballots,” so long as those ballots were “postmarked by election day.” *Id.* at 1206. And while the Court reiterated that federal judges “should *ordinarily* not alter the election rules on the eve of an election” so as to avoid “judicially created confusion,” the final result was to let stand the district court’s deadline extension entered just five days prior to the April 7 election, as modified by this Court’s postmark rule adopted the day before the election. *Id.* at 1207 (emphasis added).

The Wisconsin Elections Commission (WEC) determined after the spring election that the six-day extension (as modified by this Court’s election-day postmark requirement) had prevented the disqualification of nearly 80,000 valid ballots that had been timely cast on or before election day but not received until after election day. App. 49. The WEC Administrator testified that “election officials were able to meet all post-election canvassing deadlines notwithstanding [the] six-day extension of the deadline in April, and the extension gave election officials time to tabulate and report election results more efficiently and accurately.” App. 82-83. There is no evidence the extension led to any suspected voter fraud or other systemic problems.

Now, about half a year later, the district court has determined after extensive further evidentiary proceedings that this same relief is needed again, and that the situation today even more clearly supports this relief. Thus, the district court on September 21 ordered an extension of the Wis. Stat. § 6.87(6) election-day receipt deadline “until November 9, 2020, for all ballots mailed and postmarked on or before election day, November 3, 2020.” App. 104.

The district court’s decision underscored the many ways in which the situation today even more clearly supports awarding the same relief as in April. These include (1) a continued surge in absentee voting, with potentially *twice* as many absentee ballots in November as in April, which “will again overwhelm the WEC and local officials despite their best efforts to prepare”; (2) a continued deterioration in mail service in Wisconsin; (3) the continued partisan gridlock that has prevented the resolution of any of the “fundamental causes” of April’s election breakdown; and (4) a spiraling deterioration in Wisconsin’s public health situation, with the State breaking “numerous new case records” in September and no end in sight. App. 35, 45, 52-56, 79-83. And in the three weeks since the district court’s preliminary injunction, Wisconsin has become one of the Nation’s COVID-19 “red zones,” with “high levels of community transmission” in nearly half of Wisconsin’s counties. App. 21 (Rovner, J., dissenting).

A divided Seventh Circuit panel issued a *per curiam* order on October 8 staying the district court’s preliminary injunction in its entirety. The *per*

curiam described *RNC* as granting a stay because “the change had come too late,” even though the result of *RNC* was that “the change” (*i.e.*, the six-day ballot-receipt extension) *did* go into effect, modified by this Court’s requirement that ballots be postmarked by election day. App. 3. The *per curiam* nowhere acknowledged that the district court simply entered the identical ballot-receipt deadline extension that emerged from *RNC* in April or explained why the district court’s relief here came “too late” (six weeks before the election) even though the *same* relief was not “too late” when imposed just days before the April election.

Applicants DNC and DPW respectfully ask this Court to vacate the Seventh Circuit’s stay of the district court’s preliminary injunction extending the ballot-receipt deadline “until November 9, 2020, for all ballots mailed and postmarked on or before election day, November 3, 2020,” App. 100—the same six-day extension ordered in *RNC*.

OPINIONS BELOW

The district court has issued multiple opinions in this case since March 2020, but the two most pertinent to this application are a June 10 opinion on *Purcell* and ripeness issues, *see* App. 105-124, and the court’s September 21 preliminary injunction opinion and order, App. 33-104. The Seventh Circuit’s decision staying the district court’s injunction is at App. 1-32; its earlier decision on the Legislature’s standing is at App. 125-129.

JURISDICTION

This Court has jurisdiction over this application under 28 U.S.C. §§ 1254(1) and 1651(a). The DNC and DPW challenged Wisconsin’s election-day absentee ballot receipt deadline in an action filed in the United States District Court for the Western District of Wisconsin on March 18, 2020. That action is one of four consolidated cases subject to the district court’s September 21 injunction and the Seventh Circuit’s October 8 stay.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

This case involves the First and Fourteenth Amendments to the United States Constitution, Wis. Stats. §§ 6.28(1) and 6.87(6), and Sections 1983 and 1988 of Chapter 42 of the United States Code. All are reproduced in the Appendix beginning at App. 130.

STATEMENT OF THE CASE

This Court needs little introduction to this case, last before the Court in early April as *RNC v. DNC*. Following remand, the district court eventually consolidated four related cases involving the upcoming November 3 election. ECF No. 234.¹

The Legislature moved on remand to dismiss the consolidated cases on the theory that claims involving the November election, then six months away, were not yet ripe because they were “speculative” and “premature.” App. 110. That is relevant here because the Seventh Circuit panel held last week that,

¹ Unless otherwise noted, all citations to ECF No. ____ are to the docket entries in *DNC v. Bostelmann*, No. 20-cv-249-wmc (W.D. Wis.).

under *Purcell v. Gonzalez*, 549 U.S. 1 (2006) (per curiam), “[i]f the judge [in this case] had issued an order in May based on April’s experience, it could not be called untimely. By waiting until September, however, the district court acted too close to the election.” App. 4. But in May it was the *Legislature* asking for delay, arguing that DNC and the other plaintiffs “will suffer no hardship if the court requires a later challenge” closer to November 3. App. 111. The district court rejected that argument in part because of *Purcell*: “As was amply demonstrated in the fire drill leading up to the April election, the longer this court delays, the less likely constitutional relief to voters is going to be effective *and* the more likely that relief may cause voter confusion and burden election officials charged with its administration.” App. 112-13 (emphasis in original). Following discovery, extensive motion practice and proposed findings, and an evidentiary hearing, the district court on September 21 ordered, as relevant here, the same six-day extension ordered in *RNC*.² The court relied on a new record focused on the upcoming November 3 election, with detailed findings regarding the current on-the-ground realities in Wisconsin. Although both major parties have been involved from the opening days of this litigation, the court emphasized it did not know what the partisan consequences might be and did not care (App. 37 n.2):

² DNC and the other plaintiffs in the consolidated cases requested a variety of additional relief, nearly all of which the district court rejected. See App. 35, 62-63, 65-66 & n.18, 73-79, 86-90, 92-99. The court ordered limited relief on several additional matters, but DNC and DPW will seek *certiorari* review only of the election-day ballot receipt question presented here.

[L]et me stress ... the limited relief awarded today is without regard to (or even knowledge of) who may be helped, except the average Wisconsin voter, be they party-affiliated or independent. Having grown up in Northern Wisconsin with friends across the political spectrum (and in some cases back again), my only interest, as it should be for all citizens, is ensuring a fair election by giving the overtaxed, small WEC staff and local election officials what flexibility the law allows to vindicate the right to vote during a pandemic.

The Legislature and RNC/RPW filed notices of appeal and emergency motions to stay the district court's preliminary injunction. The Seventh Circuit panel initially questioned the Legislature's standing to appeal, *see* App. 125-29, but after the Wisconsin Supreme Court answered a Certified Question, the panel held the Legislature has standing and turned to the merits, *see* App. 1-32. Two of the judges joined a six-page *per curiam* order staying the injunction. App. 1-6. The third prepared a detailed 25-page dissent cataloguing the panel's many errors—first and foremost, its unexplained decision to stay the same deadline extension ordered six months ago in *RNC*. App. 7-32 (Rovner, J., dissenting).

REASONS FOR GRANTING THE APPLICATION

The standards for granting or vacating a stay are set forth in *Nken v. Holder*, 556 U.S. 418, 426 (2009). Point I below addresses likelihood of success on the merits. Point II addresses the remaining *Nken* factors, including irreparable harm to the movant, harm to other parties, and the public interest. These factors demonstrate this Court should vacate the Seventh Circuit's stay of the district court's preliminary injunction requiring a six-day extension of

the ballot-receipt deadline for all absentee ballots postmarked by election day.

- I. There is a reasonable probability that four Justices would vote to grant review and a fair prospect that this Court would reverse, since the district court simply ordered the *identical* injunctive relief ordered in April.**

- A. The law has not changed since *RNC v. DNC*.**

Certiorari review is appropriate when the decision below “conflicts with relevant decisions of this Court.” Sup. Ct. R. 10(c). There is such a conflict here. The panel *per curiam* did not even acknowledge that the district court had simply adopted the identical relief ordered in *RNC* six months ago. But the district court and Judge Rovner saw the obvious connections. The district court fashioned “a similar extension this time” based on “the guidance of the United States Supreme Court” in its April 6 order, hewing closely to that order. App. 82.

Judge Rovner thought the point so dispositive that she put an entire sentence in bold type lest it escape notice: “**We upheld (*i.e.*, denied a stay as to) comparable changes for the April election, and the Supreme Court modified the latter only to the extent of requiring that an absentee ballot be delivered or postmarked on or before election day.**” App. 11 (Rover, J., dissenting) (emphasis added).

The Legislature argues that the district court’s September 21 extension of the ballot-receipt deadline, modeled on the relief in *RNC v. DNC* last April, nevertheless violates *RNC*. It is hard to see how that could be. While emphasizing that federal courts “should ordinarily not alter the election rules

on the eve of an election,” 140 S. Ct. at 1207, the result of *RNC* was to allow the six-day extension of the ballot-receipt deadline to remain in effect even though issued only five days before the election, as modified by this Court’s postmark requirement ordered literally the day before the election.

The *per curiam* panel decision likewise misreads *RNC*. It claims that *RNC* stayed a “change” to “electoral rules” because “the change had come too late.” App. 3. But this Court modified the six-day extension with the election-day postmark requirement not because the extension was otherwise “too late,” but because the Court believed the absence of such a requirement “would fundamentally alter the nature of the election by allowing voting for six additional days after the election.” 140 S. Ct. at 1208. *RNC* thus stands for both judicial restraint and judicial action where necessary.

B. The on-the-ground facts in Wisconsin today even more clearly support the identical relief ordered in *RNC*.

Rather than arguing the law has changed since *RNC*, the Legislature and Seventh Circuit argue the *facts* are materially different now because “[v]oters have had many months since March to register or obtain absentee ballots,” and can avoid any problems simply “by planning ahead and taking advantage of the opportunities allowed by state law.” App. 4-5. According to the two-judge *per curiam*, “the problem that concerned the district judge ... was the difficulty that could be encountered by voters who do not plan ahead and wait until the last day that state law allows for certain steps.” App. 5.

That is a caricature of what the district court actually wrote. The court

“whole-heartedly agree[d]” with the Legislature that all Wisconsin voters should vote “*now* (or as soon as possible thereafter).” App. 81 (emphasis in original). “*Everyone* ... should be advocating for and to a large extent are advocating for such action.” App. 81 (emphasis in original). Protecting those who fail to plan ahead was not the focus of the court’s concern.³

Instead, the court’s central focus, repeated throughout its 69-page decision, was on the “overtaxed, small WEC staff and local election officials,” App. 37 n.5, and their ability to do their jobs and get ballots to voters in time for them to be voted and returned under the timeframes dictated by Wisconsin law, which the United States Postal Service (USPS) has repeatedly warned are incompatible with postal delivery standards, *see* n.4 *infra*. Wisconsin has the most decentralized election system of any State in the Nation. “With 1,850 municipal clerks and 72 county clerks responsible for administering elections, Wisconsin has more local election officials than any other state.” ECF No. 45 at 5 ¶ 17. When there is a tidal wave of absentee voting in Wisconsin, the impacts are felt not by a single state election agency but by nearly 2,000 local election jurisdictions. Many of these local jurisdictions were “nearly overwhelmed” by the volume of absentee voting. App. 44. Looking ahead to the November 3 election, the district court evaluated “the systemic issues that

³ The district court found that “so-called procrastinators” are not the only ones at risk of being disenfranchised. App. 81. “[T]here remains little doubt that tens of thousands of seemingly prudent, if unwary, would-be voters will not request an absentee ballot far enough in advance to allow them to receive it, vote, and return it for receipt by mail before the election day deadline despite acting well in advance of the deadline for requiring a ballot.” App. 81.

will arise in a system never meant to accommodate massive mail-in voting.” App. 80 n.20.

Greatly expanded surge in absentee voting. The district court found that “an unprecedented number of absentee ballots, which turned the predominance of in-person voting on its head in April, will again overwhelm the WEC and local officials despite their best efforts to prepare.” App. 35. “The WEC is now projecting 1.8 to 2 million individuals will vote via absentee ballot, ... exceeding by as much as a million the number of absentee voters that overwhelmed election officials during the April 2020 election.” App. 79.

Continued deterioration in Wisconsin mail service. The serious “mail delivery issues” that plagued Wisconsin election officials and voters in April have not improved in the past six months. App. 45. In response to a bipartisan request from Wisconsin’s Senators, the USPS Office of the Inspector General (OIG) conducted an extensive audit of mail delivery problems in Wisconsin’s April election. The results revealed a postal system that was overwhelmed by the volume of absentee ballots requested and returned by mail in March and April. The OIG warned of a potential repeat in November.⁴ The

⁴ See USPS Office of Inspector General, Management Alert: Timeliness of Ballot Mail in the Milwaukee Processing & Distribution Center Service Area (Report Number 20-235-R20, July 7, 2020), <https://www.uspsoig.gov/sites/default/files/document-library-files/2020/20-235-R20.pdf>; see also USPS Office of Inspector General, Audit Report: Processing Readiness of Election and Political Mail During the 2020 General Elections (Report Number 20-225-R20, August 31, 2020), <https://www.uspsoig.gov/sites/default/files/document-library-files/2020/20-225-R20.pdf>.

district court also detailed budget shortfalls, recent “major operational changes,” and the toll that COVID-19 has taken on postal workers themselves. App. 53. The WEC itself has reported “significant concerns about the performance of the postal service in connection with the April 7 election,” and “ha[s] no reason to expect any better performance” this time around. App. 53, 80. The district court found that “the USPS’s delivery of mail ... will undoubtedly be overwhelmed again with ballots in November.” App. 80.

Political stalemate. Wisconsin’s continuing partisan gridlock has prevented the elected branches from making the changes necessary to avoid a repeat of the many systemic breakdowns that occurred in the April 7 primary. The continuing stalemate between the Governor and Legislature has prevented any hope of legislative resolution, and the WEC’s 3-3 partisan split has blocked most regulatory action. And the nearly 2,000 local election jurisdictions in Wisconsin have been unable to take effective action on their own.

As a result, the district court found, “there is *no* evidence to suggest that the fundamental causes of the[] problems” with the April election “have resolved *or* will be resolved in advance of the November election.” App. 80 (emphasis in original); see App. 69. The WEC reports the situation is dire; “the unprecedented numbers of absentee voters will again be very challenging for local election officials to manage in the compressed time frame under current law despite their best efforts to prepare for and manage this influx.” App. 80.

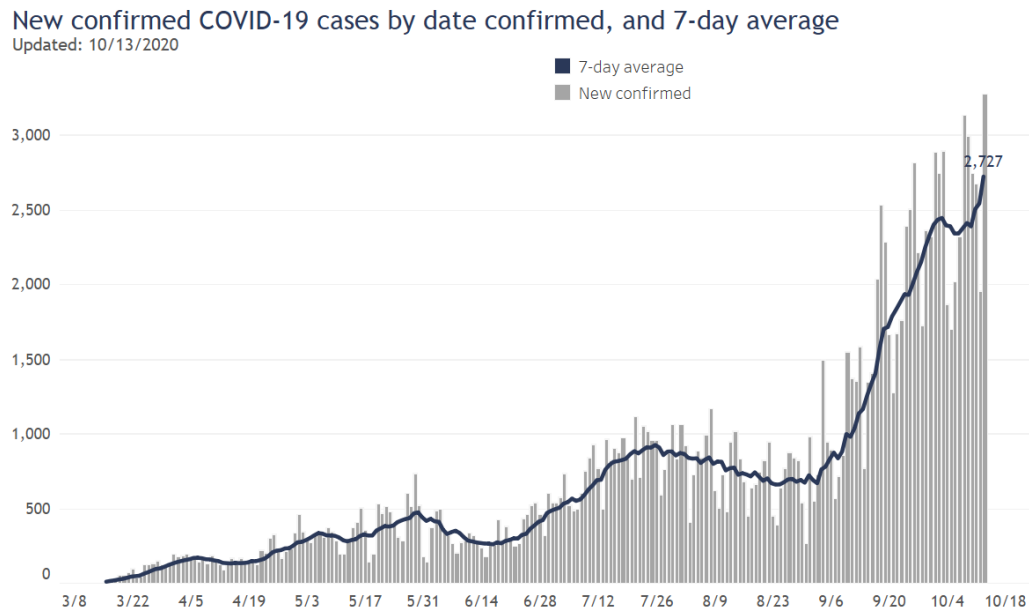
The district court found there is a “*near certainty* of disenfranchising tens of thousands of voters relying on the state’s absentee ballot process” in the November 3 election, a number that could exceed 100,000 voters in November. App. 35, 83 (emphasis added).

Wisconsin’s escalating public health emergency. The district court found in its September 21 opinion that there has been a surge in COVID-19 cases in Wisconsin in recent weeks. App. 52. The court noted that, “with flu season yet to arrive, Wisconsin has already broken numerous new case records this month.” App. 52. Judge Rovner’s October 8 dissent describes what has happened in the weeks since the district court’s September 21 preliminary injunction (App. 20-21):

As I write this dissent, new infections are surging in Wisconsin and threatening to overwhelm the State’s hospitals. Judge Conley noted that in the weeks prior to his decision, new infections had doubled from 1,000 to 2,000 per day. As of Tuesday, October 6, a seven-day average of 2,346 new cases of Covid-19 was reported. The Governor has declared a public health emergency. A draft report from the White House Coronavirus Task Force dated Monday of last week described a “rapid worsening of the epidemic” in Wisconsin and placed the State in the “red zone” for Covid-19 cases, with the third-highest number of such cases per 100,000 population in the country and seventh-highest test positivity rate. Nearly half of all Wisconsin counties now have high levels of community transmission. Hospitalization rates are at record highs in the State, with facilities in northeast Wisconsin approaching capacity due to the surge in Covid-19 cases; the State is now proceeding with plans to open a field hospital to address the shortage of hospital beds.

Thus, the November 3 election in Wisconsin is not simply taking place against the general backdrop of an eight-month-old pandemic that has ebbed and flowed in different parts of the country. Instead, it is proceeding in the

midst of a five alarm fire. Consider the difference between living in an area prone to forest fires and actually being trapped by one of them, or the difference between living in an area that is vulnerable to hurricanes and actually being caught inside a Category 5 storm. The deteriorating situation is best captured in this graph of new confirmed COVID-19 cases in Wisconsin:⁵



The obviously deepening crisis in Wisconsin would seem to require, at the very least, the same relief the federal judiciary ordered last April—relief that prevented the rejection of nearly 80,000 ballots then in an election with only half the absentee ballots projected in this election *and* when the pandemic was in its infancy in this State.

The district court’s extensive factual findings about the numerous

⁵ See Wis. Dep’t of Health Servs., *COVID-19: Wisconsin Cases* (Oct. 12, 2020), <https://www.dhs.wisconsin.gov/covid-19/cases.htm>.

reasons to adopt the relief ordered in *RNC* again were entirely ignored in the panel decision. Those findings not only deserve deference but, respectfully, even more clearly support the relief ordered in *RNC* now than in April.⁶

C. The *Purcell* principle cuts strongly in favor of the district court’s limited injunctive relief.

The district court emphasized the importance of the *Purcell* principle from the outset of this litigation, repeatedly turning to and relying on it. *See, e.g.*, ECF No. 27 at 20; ECF No. 170 at 30, 36; App. 67, 112-13. The panel *per curiam* purports to apply *Purcell* but gets the lessons of that case wrong in several respects. The panel observes that the district court’s September 21 preliminary injunction came about six weeks before the November 3 election, and compared that six-week window with other two other decisions in which this Court supposedly determined that an electoral change came “too late,” *i.e.*, was too close to an upcoming election. One of the two cases was *RNC*, in which this Court supposedly granted a stay because “the change had come too late.”

⁶ The Legislature also has argued there was no need for prompt results in the April 7 election, which was just a presidential primary and various state and local races, whereas November 3 is a Presidential election in which Wisconsin is a key swing state. This, the Legislature argues, dictates “having prompt election results” that are “conclusively determined on election night.” App. 29, 82. This argument is “thin gruel”, App. 29 (Rovner, J., dissenting), and is no reason to risk rejection of tens if not hundreds of thousands of ballots. Moreover, fourteen other States and the District of Columbia “follow a postmark-by-election-day rule (or a close variant) and count ballots that arrive in the days following the election, so long as they are timely postmarked.” App. 82. These include numerous other “swing” states. *See generally* Nat’l Conference of State Legislatures, Voting Outside the Polling Place: *Table 11: Receipt and Postmark Deadlines for Absentee Ballots*, (June 15, 2020), <https://www.ncsl.org/research/elections-and-campaigns/vopp-table-11-receipt-and-postmark-deadlines-for-absentee-ballots.aspx>.

App. 3. But the only stay granted was with respect to the extension of the ballot-receipt deadline—not because it came “too late,” but because it did not include an election-day postmark requirement. Far from staying the deadline extension as ‘too late,’ this Court ordered ballots postmarked on or before Election Day to count so long as they arrived within six days of Election Day.

The panel also cited to this Court’s stay order in *Frank v. Walker*, 574 U.S. 929 (2014), addressing the question of how soon Wisconsin’s sweeping voter ID law could take effect once approved by the courts. After being enacted in mid-2011, the voter ID law was enjoined until September 2014 and never put into effect during this time. The Seventh Circuit stayed that injunction on September 12, 2014, inviting Wisconsin to “enforce the photo ID requirement in this November’s elections,” then less than two months away. *Frank v. Walker*, 766 F.3d 755, 756 (7th Cir. 2014). On September 26, the *en banc* Seventh Circuit divided equally (5-5) over whether to vacate the panel’s stay of the injunction, so the panel’s stay remained in effect. *Frank v. Walker*, 769 F.3d 494 (7th Cir. 2014). But this Court on October 9 vacated the Seventh Circuit panel’s stay, allowing the long-standing injunction of the voter ID system to remain in effect at least through the imminent election. *See* 574 U.S. at 929.

The panel *per curiam* reasoned that, “[i]f the orders of last April [in *RNC*], and in *Frank*, were too late, so is the district court’s September order in this case.” App. 3-4. That does not follow at all. To begin, this Court in *RNC*

did not hold the deadline extension came “too late,” but modified it to include the election-day postmark requirement. And the fact that this Court decided that two months before a major federal midterm election was “too late” to implement a new and unfamiliar voter ID system says nothing about whether the modest six-day extension of a deadline in a well-established, long-functioning absentee voting system could be ordered six weeks before this election. Unlike *Frank* there is nothing for the WEC or local election officials to “implement,” simply an existing deadline to extend. And the WEC Administrator emphasized that the extension had caused no collateral harms and in fact had *helped* local election officials by giving them extra time to “tabulate and report election results more efficiently and accurately.” App. 83.

The panel’s quest for a bright-line rule about when it is “too late” also conflicts with *Purcell* itself, which emphasizes that courts are “required to weigh” numerous factors, including whether a change might increase or decrease “voter confusion,” create or eliminate “incentive[s] to remain away from the polls,” and promote or undermine “clear guidance” to voters and election officials. 549 U.S. at 4-5. Because *Purcell* involves an equitable weighing of various factors, “[t]his Court has repeatedly emphasized that lower federal courts should *ordinarily* not alter the election rules on the eve of an election,” while recognizing exceptions to the general rule where warranted. *RNC*, 140 S. Ct. at 1207; *see also Andino v. Middleton*, No. 20A55, 2020 WL 5887393, at *1 (U.S. Oct. 5, 2020) (Kavanaugh, J., concurring) (“federal courts

ordinarily should not alter state election rules in the period close to an election”) (emphasis added). Central to this analysis is determining which course best maintains “[c]onfidence in the integrity of our electoral processes,” which is “essential to the functioning of our participatory democracy.” *Purcell*, 127 U.S. at 4.

Any “incentive to remain away from the polls” in this case has been the result of a deadly pandemic and its numerous impacts to Wisconsin’s election system, not of anything done by the district court. Voter confusion and abstention from voting have been “consequent” of the pandemic and its many impacts on voting, not of anything ordered by the court. The judicial relief that emerged from *RNC v. DNC* demonstrated that a slight extension of the ballot-receipt deadline can in appropriate circumstances ensure that voters who cast their ballots in advance of the election but whose ballots are delayed in transit will not have their ballots rejected out of hand. To allow an opposite result now could only undermine public confidence in the integrity of the election and discourage voters from participating in the future.

It is telling that the WEC—the body responsible for administering elections in Wisconsin—has not opposed adoption of the six-day extension, does not believe the extension will harm the election system or cause disruption in any way, and believes an extension may once again assist WEC and local election officials throughout the State in completing their tasks and meeting all deadlines. App. 26, 82-83.

Nor can the Legislature credibly claim that *Purcell* required the DNC and other plaintiffs to move last *May* for injunctive relief in the November election—a six-month lead time. *See* App. 4. As discussed in the Statement of the Case, the Legislature in May was arguing not that November 3 was too *close*, but that it was so far away that any decision *now* would require “premature speculation as to the state of the COVID-19 situation and Wisconsin’s election administration.” ECF No. 200 at 9.

The district court rejected this argument in part on *Purcell* grounds; “any delay may ultimately preclude relief under the *Purcell* doctrine, which cautions against court intervention in imminent elections.” App. 113. Thus, while the Legislature argued last May that claims about November 3 were so distant that they were “premature speculation” and unripe, *now* the Legislature argues that the claims not only were *ripe* back in May but were *barred* under *Purcell* because they had not been brought and decided by then. The Legislature appears to seek a rule in which it is always either “too soon” or “too late” when it comes to the enforcement of constitutionally protected voting rights—where voting rights claims are either not yet ripe or barred under *Purcell*.

D. The district court did not attempt to “displace the decisions of the policymaking branches of government.”

The panel *per curiam* asserts that “[t]he district judge also assumed that the design of adjustments during a pandemic is a judicial task,” and that he

had attempted “to displace the decisions of the policymaking branches of government.” App. 4, 5. That is not a fair criticism and does not bear up under analysis. From the outset of this litigation in March, the district court repeatedly emphasized its limited role and its strong deference to elected officials and Wisconsin election regulators. And the court warned plaintiffs it would not “act as the state’s chief health official.” ECF No. 170 at 36. Following these deferential standards of federal judicial review, the district court rejected most of the DNC and other plaintiffs’ claims, emphasizing the narrow and limited nature of the relief it was ordering. *See* App. 35, 62-63, 65-66 & n.18, 73-79, 86-90, 92-99.

The district court emphasized in particular “the special role assigned the Wisconsin Election Commission in preparing for” the upcoming elections, and promised “certainly [to] take into consideration [the WEC’s] actions in determining what steps, if any, a federal court should or may undertake in protecting the right of Wisconsin voters.” App. 122. The court relied heavily on the expertise of the WEC Administrator, and repeatedly considered problems from the perspectives of the WEC staff and local election officials and volunteers in the State’s nearly 2,000 local election jurisdictions. And it extended the election-day ballot receipt deadline a second time only after being advised that, from an election administration standpoint, the six-day extension ordered in *RNC* had not caused problems and in fact had helped the WEC and local election officials in their work. App. 82–83. The WEC Administrator also

emphasized that election officials will be “able to meet all post-election canvassing deadlines” if the same extension ordered in *RNC* is ordered again. App. 82.

This may explain why the defendants in this case, the six members of the WEC, have not appealed the injunction or otherwise criticized it. Nor has Wisconsin’s Executive Branch challenged the injunction or otherwise suggested dissatisfaction with it. In this important respect, this case is similar to *Republican National Committee v. Common Cause Rhode Island*, No. 20A28, 2020 WL 4680151, *1 (U.S. Aug. 13, 2020), which denied a motion to stay the injunction where “state election officials support[ed] the challenged decree” (emphasis added). The DNC and DPW acknowledge that the injunction in *Common Cause Rhode Island* was not only supported by “state election officials” but was not opposed by any other “state official.” Here, of course, the Legislature has intervened to challenge the injunction (based not on a vote of the whole deliberative body but rather the decision of a committee of 10 representatives), but the more important point is that the WEC’s acquiescence in the court-ordered extension of the ballot-receipt deadline is another factor that warrants vacating the Seventh Circuit’s stay of the district court’s injunction.

The agreement of Wisconsin’s executive branch also distinguishes this case from this Court’s recent decision in *Andino v. Middleton*. See 2020 WL 5887393. *Andino* should not control the outcome here. There the Court stayed

a district court order enjoining South Carolina’s witness requirement for absentee ballots. The record in that case included evidence that law enforcement viewed the requirement as a useful investigatory tool in the event of voter fraud. And the South Carolina Election Commission (“SCEC”) strongly opposed the district court’s order. Here, by contrast, there has been no hint of potential voter fraud resulting from the six-day extension last April and no reason to believe the result might be different if the relief ordered in *RNC* is ordered again. The problem here, instead, involves *valid* ballots that satisfy this Court’s election-day postmark requirement but are received by local election officials in the first several days following the election. We know from the WEC that nearly 80,000 ballots fell into this category last April, that there will be twice as many absentee ballots cast in November than were cast in April, and that even with advance planning the number of ballots falling into this category in November could exceed 100,000.

The citizens who cast these valid ballots cannot and must not all be dismissed as “procrastinators.” The record demonstrates that many voters who mailed their absentee ballots well in advance of the April 7 primary were nevertheless disenfranchised because their ballots were not received by local election officials until after the election for reasons beyond those voters’ control. The burden on voters—outright disenfranchisement—is thus of the highest magnitude and voters have less ability to avoid that burden than the South Carolina voters subject to the witness requirement. Indeed, the district

court here *rejected* all challenges to Wisconsin’s statutory witness requirement *precisely* because it understood that the factual and legal contexts are entirely different. App. 75-79. As noted above, the district court rejected nearly all of plaintiffs’ challenges and granted only limited relief that, as relevant here, tracked the relief ordered in *RNC*.

Moreover, the SCEC, the state election agency responsible for administering election laws in South Carolina, strongly opposed any relaxation of the state witness certification requirement and pointed to a variety of potential adverse consequences. The circumstances here are completely different. The SCEC’s counterpart, the WEC, has affirmed that the six-day extension of the ballot receipt deadline in *RNC* did *not* prevent the WEC or local election officials from meeting all relevant post-election deadlines. App. 82–83. The WEC is similarly confident that it and local election officials can meet those deadlines again if the same relief is ordered for the November election. *See Common Cause Rhode Island*, 2020 WL 4680151, *1 (denying stay where “state election officials support[ed] the challenged decree”).

Enforcing the election day receipt deadline in the current circumstances, where a once-in-a-century pandemic is rapidly infecting thousands more Wisconsinites daily, and elections administrators and the USPS have made clear that, unless the deadline is extended, thousands of lawful voters will have their ballots rejected due to no fault of their own, clearly “has no real or substantial relation” to protecting the health and safety of the people of

Wisconsin. To the contrary, it threatens those interests. And, at the same time, it also threatens to abridge—and for thousands of voters, effectively deny—the right to vote. As such, “it is the duty of the courts to so adjudge,” to protect those voters’ federal rights, “and thereby give effect to the Constitution.” *Id.* Here, the district court did not overstep its bounds, it faithfully executed its duty. It carefully considered the evidence before it and entered narrow relief to protect the voting rights of thousands of lawful Wisconsin voters in the November election.

II. The balance of potential harms and the public interest strongly favor granting the application and vacating the stay.

The balance of harms and the public interest also strongly favor granting this application to vacate the Seventh Circuit’s stay. The extension ordered in *RNC* (as modified by this Court’s postmark rule) did not undermine election administration, but in many respects assisted the WEC and local election officials. *See supra* at 2, 20. Based on extensive evidence (including the testimony of the WEC’s Administrator), the district court found this same relief was necessary and appropriate again and would not in any way interfere with post-election deadlines. *See supra* at 3, 10–15, 18, 20–21. And the relief prevented the rejection of nearly 80,000 valid ballots postmarked on or before election day, often long before election day. *See supra* at 2, 14, 22, 24; *see also Purcell*, 549 U.S. at 4 (emphasizing “plaintiffs’ strong interest in exercising the ‘fundamental political right’ to vote”) (emphasis added).

Moreover, “[c]onfidence in the integrity of our electoral processes is

essential to the functioning of our participatory democracy.” *Purcell*, 549 U.S. at 4. That confidence in Wisconsin’s electoral process will be shattered if tens of thousands of valid, timely cast absentee ballots are not counted because they arrived two or three days after the election due to mail delays and other factors beyond the voters’ control. The district court’s modest six-day extension of the ballot-receipt deadline will best promote voter confidence and the integrity of the election system, without burdening WEC staff or local election officials. It is the contrary result that will undermine “[c]onfidence in the integrity of our electoral processes.” *Purcell*, 549 U.S. at 4.

CONCLUSION

For these reasons, the Emergency Application of Democratic National Committee and Democratic Party of Wisconsin to Vacate Stay should be granted.

Dated this 14th day of October, 2020.

Respectfully submitted,

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No. _____

IN THE SUPREME COURT OF THE UNITED STATES

DEMOCRATIC NATIONAL COMMITTEE, ET AL.,

Applicants,

v.

THE WISCONSIN STATE LEGISLATURE, ET AL.,

Respondents.

**DIRECTED TO THE HONORABLE BRETT M. KAVANAUGH,
ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED
STATES AND CIRCUIT JUSTICE FOR THE SEVENTH CIRCUIT**

I, John Devaney, a member of the Supreme Court Bar, hereby certify that the a copy of the forgoing Emergency Application of Democratic National Committee and Democratic Party of Wisconsin to Vacate Stay was filed by email with the Clerk's Office of the Supreme Court of the United States, and was served via email on the following parties listed below on this 14th day of October, 2020:

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